

24CHCV00697 24CHCV00697

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Case Number: 24CHCV00697 Hearing Date: June 24, 2026 Dept: F43

Dept. F43

Hearing Date: 06-24-26

Case # 24CHCV00697, Buenrostro v.

Bolototspy, et al.

Trial Date: None set.

MOTION TO COMPEL

PLAINTIFF'S INDEPENDENT MENTAL EXAMINATION

MOVING PARTIES: Defendants Carlos Horacio Guarino, Michael

Bolotsky, and The Appliance Doctor

RESPONDING PARTY: Plaintiff Rosa Buenrostro

RELIEF REQUESTED

Order compelling a mental examination of

plaintiff by neuropsychologist Dr. Earl Thorndyke, Ph.D. according to the

"Description of the Neuropsychological Evaluation" attached as Exhibit K to the

Declaration of Richard E. McGreevy.

RULING: Motion to compel a mental examination is

granted in part as described below in Section A. Request to seal Exhibits A, B, and C to the

McGreevy Declaration is granted.

SUMMARY OF ACTION

This personal injury action arises from a vehicle-pedestrian

collision that occurred at the intersection of Hubbard Street and Eldridge

Avenue on December 5, 2023. (Compl., ¶¶ 12-13.) Plaintiff Rosa Buenrostro (Plaintiff) alleges

that defendant Michael Bolotsky made a left turn into her as she was crossing

the street in a designated pedestrian cross walk path, causing Plaintiff to fly

back 5-10 feet on the ground and to suffer significant bodily injuries. According to Plaintiff, defendants Carlos

Horacio Guarino and The Appliance Doctor owned the vehicle driven by defendant

Bolotsky. On March 5, 2024, Plaintiff

filed a complaint asserting two causes of action: (1) negligence - "negligence per se"

against defendant Bolotsky; and (2)

negligent entrustment against defendants Guarino and The Appliance Doctor. Each defendant filed and served an answer.

Between February 26, 2024 and October 3,

2025, Plaintiff received treatment for mental harm stemming from the alleged

incident. (Declaration of Richard E.

McGreevy ¶¶ 2-4, Exh. A: Premier Forensic Psychology Evaluation and Report,

Exh. B: Neurological Injury Specialists Follow Up Report, Exh. C: NeuroPraxis report.) At some unspecified time, defense counsel

engaged Dr. Earl Thorndyke, Ph.D. to conduct a mental examination of Plaintiff that

did not exceed three reports concerning Plaintiff's mental harm: Premier

Forensic Psychology, Neurological Injury Specialists, and NeuroPraxis. (Id. ¶ 6.)

On January 16, 2026, defense counsel Brian

Leach sent plaintiff's counsel Brittany Farias a letter demanding Plaintiff

stipulate to an independent medical examination by a neuropsychologist. (Declaration of Brittany Farias ¶ 5, Exh. B.) Ms. Farias responded on January 20, 2026,

requesting the identity of the proposed examiner, the detailed description of

the scope and purpose of the examination, and the specific list of diagnostic

instruments, cognitive tests, and psychological assessments Defendants intend

to administer. (Farias Decl. ¶ 6, Exh.

C.)

Two months later on March 25, 2026, Mr. Leach

sent Ms. Farias, a letter requesting she stipulate to Plaintiff's mental

examination and provided the information Ms. Farias had previously requested. (McGreevy Decl. ¶ 7, Exh. D.) From April 1, 2026 through June 17, 2026,

counsel have engaged in back and forth meet and confer discussions concerning

the scope of the examination, the length of the examination, whether Plaintiff

may have a representative or observer at the examination, and whether the

proposed examiner should be required to send raw data from the exam to Ms.

Farias. The parties have not come to an agreement.

On May 6, 2026, Defendants filed the instant motion to compel Plaintiff's mental independent medical examination. Plaintiff filed an opposition and Defendants filed a reply (supplemental brief) on June 17, 2026.

MEET AND CONFER

A motion to compel a mental independent medical examination must be accompanied by a "meet and confer" declaration showing a reasonable and good faith attempt at an informal resolution before the motion was filed. (Code Civ. Proc., §§ 2032.310, subd. (b), 2016.040.) In

Department F43, meet and confer means in person or via phone. A letter or email does not suffice. (Department F43 Courtroom Information, p. 2.)

The "meet and confer" requirement is met because counsel spoke telephonically on March 31, 2026. (McGreevy Decl., Exh. J at p. 7.)

ANALYSIS

A. Timeline of Relevant Events

Between February 26, 2024 and October 3, 2025, Plaintiff received treatment for mental harm stemming from the alleged incident. (Declaration of Richard E. McGreevy ¶¶ 2-4, Exh. A: Premier Forensic Psychology Evaluation and Report,

Exh. B: Neurological Injury Specialists Follow Up Report, Exh. C: NeuroPraxis report.) Defendants' counsel does not state when he

learned about this treatment but does state as of December 5, 2025, Plaintiff

left no doubt her mental condition was at issue in this matter. (McGreevy Decl. ¶ 5.)

At some unspecified time, defense counsel

engaged Earl Thorndyke, Ph.D. to conduct a mental examination of Plaintiff that

did not exceed the Premier Forensic Psychology, Neurological Injury

Specialists, and NeuroPraxis reports.

(McGreevy Decl. ¶ 6.)

On January 16, 2026, defense counsel Brian

Leach sent plaintiff's counsel Brittany Farias a letter demanding an

independent medical examination of plaintiff by a neuropsychologist. (Declaration of Brittany Farias ¶ 5, Exh.

B.) Ms. Farias responded on January 20,

2026, requesting the identity of the proposed examiner, the detailed

description of the scope and purpose of the examination, and the specific list

of diagnostic instruments, cognitive tests, and psychological assessments

Defendants intend to administer. (Farias

Decl. ¶ 6, Exh. C.)

Two months later on March 25, 2026, Mr. Leach

sent Ms. Farias, a letter requesting she stipulate to Plaintiff's mental

examination and provided the information Ms. Farias previously requested. (McGreevy Decl. ¶ 7, Exh. D.)

Ms. Farias responded on April 1, 2026, with a

“meet and confer” letter about defense counsel’s request and included a

stipulation and proposed order.

(McGreevy Decl. ¶ 8, Exh. E; Farias Decl. ¶ 7, Exh. D.) The letter agreed to an examination on April

29, 2026, provided that the examination be completed within one day; in the

presence of plaintiff’s nurse observer or representative during the

examination; the exam be limited to specific tests identified in advance of the

exam; a limited clinical interview; and entering into a stipulated protective

order subject to audio recording/raw data of the entire mental examination only

be used in this case. The proposed

stipulation listed 28 tests to be administered.

(McGreevy Decl. ¶ 8, Exh. E at pp. 4-12.)

On April 11, 2026, defense counsel sent a

response with a revised stipulation, setting forth the scope of the examination

that Dr. Thorndyke determined necessary.

(McGreevy Decl. ¶ 9, Exh. F; Farias Decl. ¶ 8, Exh. E.) The proposed stipulation included 31 tests to

be administered. The response also

addressed ethical issues concerning raw data security and the data being

provided to counsel. (Discussing Randy’s

Trucking (2023) 91 Cal.App.5th 818.)

Ms. Farias responded on April 15, 2026,

challenging the estimated time, bar of plaintiff's representative/observer, the

raw data issue, the scope of the examination, failure to clarify the examiner

is limited to the stipulation's scope, the inclusion of the history of the

incident, the removal of the raw data provision, and other issues. (McGreevy Decl., Exh. G; Farias Decl. ¶ 9,

Exh. F.) Ms. Farias reiterated she was

willing to meet and confer directly concerning the issue.

On April 23, 2026, defense counsel Richard E.

McGreevy responded, stating Dr. Thorndyke was not willing to jeopardize his

professional ethics and exchange raw data in a manner that allows

non-professional individuals that are not required to comply with the ethical

standards applicable to psychologists to have access to the raw data and

written tests. (McGreevy Decl., Exh. H;

Farias Decl. ¶ 10, Exh. G.) The

responses included an updated stipulation, a document titled "Description of

the Neuropsychological Evaluation," and requested objections so that the exam

could move forward on April 29, 2026.

Also on April 23, 2026, Ms. Farias sent

another response, addressing issues with the scope of the "clinical interview,"

the raw data issues, and the overbroad scope of the exam beyond the specific

conditions at issue. (McGreevy Decl.,

Exh. I.) Ms. Farias also reiterated that

the Randy's Trucking case recognized that raw data and related materials

may be provided directly to counsel, subject to an appropriate protective

order. Furthermore, Farias cited Avalos

v. AC & R Construction for the contention that where the defense seeks

a mental examination but the examiner refuses to proceed under conditions

requiring that raw data be produced directly to plaintiff's counsel subject to

a protective order, the court will decline to modify those conditions to accommodate

the examiner's preferences and instead will deny the mental examination

altogether.

The examination did not occur on April 29,

2026. Between April 23 and June 12,

2026, the parties continued to exchange written correspondence and emails

regarding the terms of the proposed mental examination. (Farias Decl. ¶ 11, Exh. H.)

On May 6, 2026, Defendants filed the instant

motion to compel.

On May 12, 2026, Plaintiff appeared for a

physical and neurological examination performed by Defendants' expert Dr. Luke

Macyszyn, M.D. (Declaration of Brittany

Farias ¶ 3.)

At the court's June 12, 2026, hearing on

Defendants' Ex Parte application, the court advanced the hearing on the instant

motion to June 24, 2026, ordered Plaintiff to file and serve an opposition by

June 17, 2026, and Defendants to file and serve a reply by June 22, 2026.

On June 16, 2026, Ms. Farias sent defense

counsel a "meet and confer" letter addressing the outstanding disputes: (1) the

scope of Dr. Thorndyke's examination not being coextensive with plaintiff's

treating providers; (2) disputed

categories concerning plaintiff's developmental history, education, employment

history, social and marital history, legal history/prior disability claims,

general medical history, mental health history, substance use, and family history;

(3) oral-only format and raw data transmission and rights; (4) the

estimated exam time; and (5) a protective order. (Farias Decl. ¶ 12, Exh. I.) Ms. Farias also requested that defense

counsel identify the factual basis for each disputed area of inquiry and

proposed specific, reasonable compromises to resolve the outstanding issues

before the next hearing. (Id.) Mr. McGreevy responded the next day,

indicating the parties remain at an impasse.

(Id., Exh. J at p. 3.)

B. Conducting Mental Independent Medical

Examinations

A motion for a mental independent medical examination

(IME) must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Code Civ. Proc. § 2032.310, subd. (b).)

The court cannot order the examination of a party who has not asserted his or her physical or mental condition to support a defense or claim. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 389 (Vinson).)

However, once a “party who chooses to allege that he has mental and emotional difficulties,” the party puts his mental state in controversy. (Id.; Code Civ. Proc., § 2032.020, subd. (a).)

The moving party has the burden to show by declarations or other evidence that the examinee’s condition is “in controversy.” (Reuter v. Superior Court (1979) 93 Cal.App.3d 332, 340.) Pleadings and discovery tools such as interrogatories or depositions may also put a party’s mental or physical condition in controversy when the pleading alleges a party suffers psychiatric conditions as a result of sustained injuries. (Id.)

The court may only grant such a motion for “good cause,”

in order to protect the examinee from “excessive and unwarranted

intrusions.” (Code Civ. Proc., §§

2032.310, subd. (a), 2032.320, subd. (a);

Sporich v. Superior Court (2000) 77 Cal.App.4th 422,

428.) A showing of good cause generally requires “that the party produce

specific facts justifying discovery and that the inquiry be relevant to the

subject matter of the action or reasonably calculated to lead to the discovery

of admissible evidence.” (Vinson,

supra, 43 Cal.3d at p. 840.)

“Good cause is established by facts that ‘appear in the record as a

demonstrable reality.’ Mere speculation,

standing alone, will not suffice.” (Sporich

v. Superior Court, supra, 77 Cal.App.4th at p. 428, superseded on

other grounds by Albertson v. Superior Court (2001) 25 Cal.4th 76.)

“An order granting a physical or mental examination shall

specify the person or persons who may perform the examination, as well as the

time, place, manner, diagnostic tests and procedures, conditions, scope, and

nature of the examination.” (Code Civ.

Proc., § 2032.320, subd. (d), emphasis added;

Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 261

["Requiring the court to identify the permissible diagnostic tests and procedures, by name, confirms that the court has weighed the risks of unwarranted intrusion upon the plaintiff against the defendant's need for a meaningful opportunity to test the plaintiff's claims of physical or mental injury. Furthermore, the resulting specificity and clarity of the order will also aid the examiner in understanding and complying with the parameters imposed by the court."].)

Defendants move for Plaintiff's mental independent medical examination (IME) based on Plaintiff putting her mental health at issue in this matter.

From February 26, 2024 through February 26, 2025, Plaintiff

received treatment from Premier Forensic Psychology. (McGreevy Decl. ¶ 2, Exh. A.) According to Premier's evaluation and report Plaintiff

has suffered from "substantial mental harm and psychological trauma" as a result of the vehicle-pedestrian accident in this matter. Between July 10 and October 3 of 2025, Plaintiff was treated with Neurological Injury Specialists for memory impairment, depression, anxiety, and stress intolerance.

(Id. ¶ 3, Exh. B.) On

December 10, 2025, Plaintiff was evaluated at NeuroPraxis and diagnosed with memory and cognitive deficits including, but not limited to, problems with comprehension, decision making, learning, cognitive flexibility, planning,

organization, time management, problem solving, math, reading, and writing. Her

proposed plan of care includes cognitive therapy and psychotherapy. (Id. ¶ 4, Exh. C.)

Defendants do not state when or how they received these

reports or why they waited until March 25, 2026 to respond to Ms. Farias's

January 20, 2026 email asking for clarity.

Regardless, Plaintiff's mental health injuries are now at issue in this

matter.[1]

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1. Defendants have demonstrated "good cause" for

the mental exam.

Defendants claim good cause exists for a mental IME

because Plaintiff has put her mental health at issue. According to defendants, the IME will provide

relevant background information about the circumstances concerning the onset of

Plaintiff's mental health issues concerning her mental state before, during,

and after the alleged incident and the manifestation of Plaintiff's symptoms

over time to present. (Motion at p.

5:8-23.) Considering this is a personal

injury matter and assuming Plaintiff provided the three reports to Defendants,

Plaintiff has put her psychological issues stemming from the incident at issue. Because Plaintiff seeks damages for injuries

she has suffered and continues to suffer, Defendants properly demonstrate good cause for a mental IME as limited to the issues in the three reports.

2. The

scope of the examination is overly broad.

“[W]hile the filing of a lawsuit may implicitly

bring about a partial waiver of one’s constitutional right of associational

privacy, the scope of such ‘waiver’ must be narrowly rather than expansively

construed.” (Britt v. Superior Court (1978)

20 Cal.3d 844, 859.)

The “Description of the Neuropsychological Evaluation”

states in relevant part:

The scope

of the MSE is to evaluate Ms. Buenrostro’s mental and emotional conditions that

she has put into controversy in this matter by her complaint and the analysis

and evaluations of her treating medical [sic] providers as set forth in their

reports produced in this litigation. The MSE will not involve questions about

how the incident, which is the subject of this lawsuit [sic] occurred. The MSE

will include relevant background information about the circumstances of onset

of the alleged mental state before, at the time of and after the alleged events

and how those symptoms have manifested over time to the present.

The MSE

will consist of a clinical interview covering a variety of relevant topics, including background information; the reported circumstances of onset of the alleged mental state injury or injuries; and how those symptoms have unfolded over time to the present, including any other assessments, treatment, or functional impairment. A detailed evaluation of this type is important in differentiating between mental state injuries/complaints that may be pre-existing and not related to the alleged actions of the defendants; injuries/complaints that were pre-existing but may have been exacerbated by the alleged actions of defendants; injuries/complaints that arose concurrently but unrelated to alleged actions of defendants; complaints that arose as a result of defendants' alleged conduct; complaints that are actually due to substance use or medications; complaints that are due to an underlying general medical disorder; or complaints that arose subsequent to the alleged actions of defendants and were unrelated.

Pertinent

areas of inquiry with regard to plaintiff's background include developmental history, education, employment, social and marital history, legal history (such as disability claims, if any), general medical history, mental health history, substance use, and family history. Additionally, the clinical interview will

elicit from plaintiff a detailed account of the onset and course of his/her mental state problems/impairments related to the alleged conduct of the defendants, culminating in a review of current mental state and physical complaints.

(McGreevy Decl., Exh. K at p. 1, paras. 2-4.)

As phrased, this language is overbroad because it does not state the examination is limited to the issues in the three reports which serve as the basis of Defendants' motion.

This is also reflected in the most recent stipulation Defendants served

on April 23, 2026, which is silent concerning the names of the reports or the

specific symptoms and diagnoses in the cited reports. (McGreevy Decl., Exh. H at pp. 2-11.) As the "Description of the Neuropsychological

Evaluation" is currently phrased, Dr. Thorndyke may ask questions beyond the scope of the reports.

In order to limit the overbreadth of the Description, the

court limits the scope of the examination to inquiries concerning the symptoms

and diagnoses in the Premier Forensic Psychology report (dated February 26,

2025), Neurological Injury Specialists report (dated October 3, 2025), and

NeuroPraxis report (dated December 10, 2025), attached as Exhibits A, B, and C

to the McGreevy Declaration, executed on May 6, 2026. More specifically, the court modifies the

scope of the examination as follows:

.

The examination is limited to matters

reasonably related to Plaintiff's claimed mental injuries from the alleged

incident that occurred on December 5, 2023:

TBI, post concussive syndrome, PTSD, Major Depressive Disorder, memory

impairment, cognitive deficits, changes in mood and sleep/wake cycle changes,

anxiety, mood swings, stress intolerance;

.

The inquiry may include developmental,

educational, employment, social, marital, legal, disability, family,

medication, and substance-use. The

inquiry may include physical health as it relates to the claimed mental

injuries (e.g., decreased or increased appetite as a symptom of Major

Depressive Disorder);

.

Prohibited from seeking unrelated information

which was already obtained in previous depositions.

(Opposition at p. 12:17-24.)

3. Because

the exam is being conducted as an oral inquiry, the raw data issue is moot.

An ongoing issue throughout counsel's "meet and confer"

efforts was whether the raw data from the exam could be sent directly to

plaintiff's counsel. Defendants claim

this is no longer an issue because the examination will only consist of an oral

interview, rather than standardized testing, and will not involve a physical

examination of any kind. (Motion at pp.

5:24-6:1.)

Thus, the "raw data" issue is moot.

4. Plaintiff

does not demonstrate this is an "exceptional case" requiring counsel's presence

at the mental examination.

Defendants contend the court should deny Plaintiff's

request to have a personal representative present at the mental IME based on Edwards

v. Superior Court (1976) 16 Cal.3d 905.

Plaintiff's opposition does not address this issue or state why her

counsel's or another representative's presence would be necessary at the mental

IME.

Code of

Civil Procedure section 2032.510 expressly provides that the attorney for the

examinee, or the attorney's representative, must be permitted to attend and

observe any physical IME conducted for discovery purposes. (Code Civ. Proc., § 2032.510, subd.

(a).) No equivalent mandatory provision

exists for mental examinations. Instead,

Section 2032.530, subdivision (b) states:

"Nothing in this title shall be construed to alter, amend, or affect

existing case law with respect to the presence of the attorney for the examinee

or other persons during the examination by agreement or court order." Courts have interpreted this distinction to indicate

the Legislature's intent that counsel not be present at a mental examination

except in "exceptional cases." (People

v. Burns (2005) 128 Cal.App.4th 794, 805 [citing Golfland Entertainment

Centers, Inc. v. Superior Court (2003) 108 Cal.App.4th 739, 746-749].) The California Supreme Court previously held

that a plaintiff in a personal injury action may not insist upon the presence

of their attorney at a psychiatric examination conducted by the defense. (Edwards

v. Superior Court (1976) 16 Cal.3d 905, 909-912.) Because the purpose of a mental examination

is to ascertain the examinee's mental processes and the personal interview

requires rapport between the examiner and examinee, the attorney's presence and

participation would hinder the purpose of the exam. (Toyota Motor

Sales, U.S.A., Inc. v. Superior Court (2010) 189 Cal.App.4th 1391, 1396.)

Here,

Plaintiff's opposition fails to present facts demonstrating how this is an "exceptional case," requiring counsel's or another representative's presence at the mental exam.

Therefore,

the court denies any request for plaintiff's counsel or plaintiff's counsel's representative to attend and observe the mental exam.

5. The

parties do not dispute Dr. Thorndyke's qualifications for performing the mental examination.

A mental exam "shall be performed only by a licensed physician, or by a licensed clinical psychologist who holds a doctoral degree in psychology and has had at least five years of postgraduate experience in the diagnosis of emotional and mental disorders."

(Code Civ. Proc., § 2032.020, subd. (c)(1).)

Dr. Earl Thorndyke, Ph.D. is a clinical psychologist, licensed in California, a fellowship-trained neuropsychologist, and serves as a clinical neuropsychology supervisor at Executive Mental Health. (Declaration of Earl C. Thorndyke, Ph.D. ¶

1.) The moving papers do not present any

further information about Dr. Thorndyke's background and whether he has at

least five years of postgraduate experience in diagnosing emotional and mental

disorders. Defendants' March 25, 2026,

Letter demanding the mental IME states Dr. Thorndyke's curriculum vitae is attached, but Defendants did not include a copy of the document with the moving papers. (McGreevy Decl., Exh. D.) Because Plaintiff does not challenge Dr. Thorndyke's qualifications, the court infers that the parties agree that Dr. Thorndyke may perform the mental IME.

Therefore, the court grants in part Defendants' motion to compel the independent mental examination of plaintiff Rosa Buenrostro.

Plaintiff is ordered to submit to an independent mental examination within twenty (20) days of this order as follows:

1. Dr. Earl

Thorndyke, Ph.D. will conduct an oral mental examination on a date and at a time to be agreed upon by Plaintiff and Defendants.

2. The examination

will last no more than eight hours, including breaks.

3. The examination

will take place at 11835 W. Olympic Boulevard, Suite 1270E, Los Angeles, CA 90064.

4. The Scope of

the Examination is limited to a clinical interview and inquiry as follows:

- Matters reasonably related to Plaintiff's

claimed mental injuries from the alleged incident that occurred on December 5,

2023: TBI, post concussive syndrome,

PTSD, Major Depressive Disorder, memory impairment, cognitive deficits, changes

in mood and sleep/wake cycle changes, anxiety, mood swings, stress intolerance;

- Developmental, educational, employment,

social, marital, legal, disability, family, medication, and substance-use; and

- Physical health as it relates to the claimed

mental injuries (e.g., decreased or increased appetite as a symptom of Major

Depressive Disorder);

5. Dr.

Thorndyke will not perform any standardized tests.

6. Dr. Thorndyke

may not question Plaintiff about any of the following matters: liability and the circumstances of the

accident.

7. Defendants must

serve a revised and code-compliant deposition notice and "Description of the

Neuropsychological Evaluation" that reflects the "Scope of Examination" limitations

in item number 4.

8. Dr. Thorndyke

will submit his mental exam report to defense counsel within fifteen days after the exam.

B. Sealing Exhibits A, B, and C to the

McGreevy Declaration

In Defendants' reply and supplemental brief, Defendants

asks the court to seal Exhibits A, B, and C, the reports on which this motion is based.

Unless confidentiality is required by law, court records

are presumed to be open to the public, pursuant to a potent "open court" policy

undergirded by the First Amendment and favoring the public nature of court

proceedings. (Cal. Rules of Court, rule 2.550(c); See NBC

Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20

Cal.4th 1178, 1199-10.) Consequently, pleadings, motions, discovery

documents, and other papers may not be filed under seal merely by stipulation

of the parties; filing under seal requires a court order. (Cal. Rules of

Court, Rule 2.551(a); See H.B. Fuller Co. v. Doe (2007)

151 Cal.App.4th 879, 888.)

"A party requesting that a record be filed under seal

must file a motion or an application for an order sealing the record. The motion or application must be accompanied

by a memorandum and a declaration containing facts sufficient to justify the

sealing.” (Cal. Rules of Court, rule

2.551(b)(1).) The records cannot be

sealed without the appropriate findings.

(Cal. Rules of Court, rule 2.550(d).)

According to Defendants, the court may seal the three

reports because (1) Plaintiff’s privacy rights are arguably an overriding

interest that overcomes the right of public access to the record; (2) the

overriding privacy interest supports sealing the record; (3) a substantial

probability exists that Plaintiff’s right to privacy will be prejudiced if the

record is not sealed; (4) the proposed sealing is narrowly tailored to only the

three reports that might infringe upon Plaintiff’s right to privacy; and (5) no

less restrictive means exist to protect Plaintiff’s right to privacy from

public disclosure of these records.

The court agrees and grants Defendants’ request to seal

Exhibits A, B, and C to the Declaration of Richard E. McGreevy, filed on May 6,

2026.

CONCLUSION and ORDER

Motion to compel a mental examination is

granted in part as described above in Section A.

Request to seal Exhibits A, B, and C to the

McGreevy Declaration is granted.

Defendants to give notice.

[1] The court notes that Complaint does

not specify the types of injuries Plaintiff alleges she suffered from the

vehicle-pedestrian collision.